

Court No. - 39

Case :- WRIT - C No. - 1522 of 2019

Petitioner :- Manoj Kumar Sharma

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Karan Prakash Tiwari

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Mr. Karan Prakash Tiwari, learned counsel for the petitioner and Mr. Rajesh Kumar Sachan, learned counsel for the respondent Nos. 2 and 3.

In para 28 of the writ petition, the petitioner stated that in respect of the recovery citation, he had filed Writ Petition No. 21351 of 2018 which was dismissed by this Court by order dated 14.06.2018 with liberty to the petitioner to approach the Consumer Grievance Redressal Forum. Copy of that order has not been filed with the writ petition although it is stated to have been marked as Annexure No.9 to the writ petition.

The petitioner prays for and is granted one week's time to file supplementary affidavit bringing on record the order dated 14.06.2018 stated to have been passed in Writ Petition No. 21351 of 2018.

The petitioner shall also disclose the current status of Contempt Application bearing No. 3231 of 2018 filed by him.

As prayed, list this matter on 25th January, 2019, as fresh.

Order Date :- 17.1.2019

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Supplementary affidavit filed today is taken on record.

Heard Sri Karan Prakash Tiwari, learned counsel for the petitioner, Sri Rajesh Kumar Sachan, learned counsel for the respondents no.2&3 and the learned Standing Counsel for Respondent no.1.

The petitioner in the writ petition is seeking quashing of the impugned notice dated 07.12.2018 whereby he has been directed to deposit a sum of Rs. 39,23,987/- towards electricity dues.

It appears that the petitioner had earlier filed a writ petition bearing no. 15366 of 2018, challenging the demand notice dated 14.05.2018, which has been issued against him for a sum of Rs. 46,42,368/-. That writ petition was disposed of by the Court vide order dated 27.04.2018 with a direction that if the petitioner files an objection before the respondent within 15 days, the respondent shall decide the said objection in accordance with law and no coercive action shall be taken against the petitioner for the next 15 days.

It is alleged that the objections were not decided, therefore, the petitioner filed a contempt Application (Civil) No. 3231 of 2018 in which the Court has issued notice to the respondents. It is stated that the contempt application is still pending.

The petitioner then filed another Writ Petition No. 21351 of 2018, challenging the recovery citation dated 14.05.2018. That writ petition was dismissed on the submission of the counsel for the petitioner that he would like to withdraw the writ petition with liberty to approach the Consumer Grievance Redressal Forum, under Clause 7.10 of the Electricity Supply Code, 2005.

So far, as stated by the learned counsel for the petitioner, the petitioner has not approached the Consumer Grievance Redressal Forum and now he has filed the present writ petition,

challenging another demand notice dated 07.12.2018.

In our opinion, the petitioner has a remedy either by approaching the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005 or by representing before the Executing Engineer, Paschimanchal Vidyut Vitaran Nigam Ltd., Bulandshahar, under Clause 6.5 of the Electricity Supply Code, 2005.

However, since the petitioner has already got his earlier writ petition no. 21351 of 2018, dismissed with liberty to approach the Consumer Grievance Redressal Forum, he should approach the Consumer Grievance Redressal Forum.

For reasons aforesaid, the writ petition is dismissed.

Order Date :- 25.1.2019

JK Yadav